implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

<u>Attorneys' Fees</u>
Plaintiffs seek attorneys' fees of $82,500.00 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount not to exceed $20,000.00 and the requested service payment of $10,000 to the class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause appearing, the Court makes the following orders and ruling.

<u>Ruling</u>

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **<u>granted</u>**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged October 8, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiff's counsel is to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

5. 9:00 AM CASE NUMBER: C22-02161
CASE NAME: LAKEITHIA JOHNSTON VS. GEORGIA-PACIFIC GYPSUM LLC
HEARING ON MOTION IN RE: COMPLIANCE HEARING OF CLASS SETTLEMENT SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:
Summary

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on August 12, 2025.

Upon review of the declaration filed by Madely Nava of Apex Class Action certifying disbursement filed on June 30, 2026, the Court determines that Plaintiff has complied with the Court's order.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of $15,833,30 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of this Order.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

6. 9:00 AM CASE NUMBER: C22-02261
CASE NAME: MICHAEL GONZALES VS. MECHANICS BANK
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: GONZALES, MICHAEL
TENTATIVE RULING:
Summary
Plaintiffs Michael Gonzales and Nicole Burton ("Plaintiffs"), on behalf of themselves and all persons similarly situated, filed a Motion for Preliminary Approval of Class Action and PAGA Settlement with Defendant Mechanics Bank ("Defendant"). The motion is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on July 15, 2026, provided counsel complies with the orders herein.

Background
Plaintiffs request that the Court grant preliminary approval of the Settlement and conditionally certify the Settlement Class pursuant to the terms set forth in the Stipulation of Settlement of Class and PAGA Action Claims and Release of Claims. The Settlement Class is defined as all non-exempt employees who are or previously were employed by Defendant Mechanics Bank and/or Rabobank, N.A. as direct employees and performed work in California during the period from October 20, 2018, to November 12, 2024. The Class excludes any non-exempt employees who previously entered into settlement or severance agreements with Defendant and/or Rabobank, N.A. that cover the entirety of the Class Period. The Class consists of approximately 2,280 Class Members. Plaintiffs request that the